RUN OF SHOW AND SPEAKER SCRIPT

# Estate Planning under the Indian Succession Act, 1925

Two cases: the Birla–Lodha will dispute, and the live enactment of Mary Roy v. State of Kerala (Supreme Court, 24 February 1986)

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## Part A. Running order

The whole presentation runs about 16 minutes before questions. The hearing is slides 4 to 6 and takes about 9 minutes including the vote and debrief. Shorter versions are in Part E.

| Slide | Topic | Speaker | Time |
|---|---|---|---|
| 1 | Title | Trevor | 0:45 |
| 2 | The Act at a glance: with a will, or without | Trevor | 1:15 |
| 3 | One will, twenty years in court | Deepesh | 2:00 |
| 4 | Mary Roy v. State of Kerala (cast and facts) | Sahil | 1:15 |
| 5 | Two sides before the bench (live hearing, Scenes 1 to 4) | Trevor, Deepesh, Sahil, Tejas | 5:00 |
| 6 | Mary Roy wins: the old Act was repealed (Scene 5 and debrief) | Trevor, Deepesh, then Sahil | 2:30 |
| 7 | A four-point estate planning checklist | Tejas | 1:30 |
| 8 | Thank you, Questions? | All four | 1:00+ |

### Cast and staging

| Role | Played by | Position |
|---|---|---|
| Presiding Judge | Trevor | Seated, centre. Taps the table to open and close. |
| Second Judge | Deepesh | Seated, beside. Controls the slide clicker in the hearing. |
| Counsel for the petitioner (Mary Roy) | Sahil | Standing, left of the bench. |
| Counsel for the respondent (the State of Kerala) | Tejas | Standing, right of the bench. |

**The one question before the court:** did the Indian Succession Act, 1925, extended to Travancore-Cochin in 1951, repeal the Travancore Christian Succession Act, which gave daughters a fraction of a son's share?

# Part B. Speaker script, slides 1 to 4

*Square brackets are cues, not words to say. Each speaker's last line hands over to the next.*

## Slide 1. Title

*Trevor · about 0:45 · Stand centre. Pause after the opening question.*

Good afternoon, everyone. Let me start with two questions. If a wealthy person writes a will, can the family still be in court twenty years later? And if a father dies without a will, can the law quietly decide that his daughter gets a fraction of what her brother gets? [Pause.] The answer to both is yes, and we have a real case for each.

We are Trevor, Deepesh, Sahil and Tejas, and our topic is estate planning under the Indian Succession Act, 1925. We picked two famous cases. The first is a will that has been fought over since 2004: the Birla–Lodha dispute. The second is a Supreme Court case about a family with no will: Mary Roy. We will stage the second one live, with you as the audience in the courtroom. First, the framework.

## Slide 2. The Act at a glance: with a will, or without

*Trevor · about 1:15 · Point to the left card, then the right card.*

The Act deals with two situations: a person dies without a will, or with one.

Without a will, the Act's default rules decide who inherits. Under Section 33, a widow takes one-third of the estate if there are lineal descendants, one-half if only other kindred survive, and the whole estate if there are neither. Parsis are excluded from this chapter by Section 31.

With a will, the question changes. The will must be validly executed under Section 63, and in many cases it must be probated under Section 213 before the family can enforce it.

Our two cases sit on either side of that line. The Birla–Lodha dispute is a will that is still being fought over. Mary Roy is a family that had no will, and the law decided for them. Deepesh will start with the will.

## Slide 3. One will, twenty years in court

*Deepesh · about 2:00 · Step forward as Trevor hands over. Read the three cards left to right: the will, the fight, the lesson.*

Thank you, Trevor. Our first case is one of India's best-known will disputes. Priyamvada Devi Birla was the widow of M.P. Birla, and they had no children. When she died in 2004, a will dated 1999 came forward. It left her estate to R.S. Lodha, a chartered accountant who had been the group's auditor and adviser, and who was also named its executor.

The Birla family contested it. They pointed to an earlier joint will with her husband, and as reported, they expected the wealth to go to charitable trusts. The estate was reported to be worth thousands of crores and carried control of listed Birla group companies.

Lodha applied for probate in 2004, and the fight has not stopped. At one stage there were more than 100 cases. In March 2008 the Supreme Court dealt with who has the right to oppose probate at all. A court-appointed committee has administered the estate while the fight continues.

For planning, three things stand out. First, a will does not end a dispute by itself; it starts the probate process. Second, rival wills and unclear executors invite years of litigation. Third, a will is more likely to hold if it is one clear, current document and the family has been told why. We chose not to enact this one because the question of the will's validity is still open, so there is no verdict to act out. For a courtroom with a clear ruling, we turn to the other side of the line. Sahil will set up the hearing.

## Slide 4. Mary Roy v. State of Kerala (cast and facts)

*Sahil · about 1:15 · Judges take their seats while Sahil speaks. Take the audience vote. Click to slide 5 on the last line.*

Thank you, Deepesh. The Birla case shows a will under attack. Now let us look at what happens when there is no will at all.

We will enact the Supreme Court hearing in Mary Roy v. State of Kerala, decided on 24 February 1986. Mary Roy, an educator from Kerala and the mother of the writer Arundhati Roy, was a Syrian Christian. Her father, P. V. Isaac, died in 1960 without a will. Under the Travancore Christian Succession Act, a daughter received a fourth of a son's share or five thousand rupees, whichever was less. Mary Roy sued her brother, lost in the lower court, and went to the Supreme Court in 1983.

Our cast: Trevor and Deepesh are the bench. I argue for Mary Roy. Tejas argues for the State of Kerala.

Before we begin, a show of hands. The old Act gave the daughter a small fraction. When the Supreme Court decided, did it strike the law down as unconstitutional, or did it find the law was already gone? Hands up for unconstitutional. [Count.] Hands up for already gone. [Count.] Remember your vote.

[CUE: Click to slide 5. Counsel stand at their marks. Trevor taps the table.]

# Part C. Enactment script (slides 5 and 6)

*About 6 minutes. Slide 5 stays up for Scenes 1 to 4. Deepesh clicks to slide 6 when Trevor says "The court will confer." Speak to the bench, not the audience.*

## Scene 1: Opening and facts (1 minute)

*Slide 5. Counsel stand at their marks. The judges are already seated. The presiding judge taps the table twice.*

| | |
|---|---|
| Presiding Judge (Trevor) | Order, order. The court is in session. Writ Petition Civil Number 8260 of 1983, Mary Roy against the State of Kerala, under Article 32 of the Constitution. Learned counsel, I will state the facts. Correct me if I am wrong. |
| Presiding Judge (Trevor) | The petitioner, Mary Roy, belongs to the Syrian Christian community of Kerala. Her father, P. V. Isaac, died in 1960 without a will. Under the Travancore Christian Succession Act, a daughter takes a fourth of a son's share, or five thousand rupees, whichever is less. She sued her brother for an equal share, and her plea was rejected. She is now before this Court. |
| Counsel for Mary Roy (Sahil) | That is correct, My Lord. |
| Counsel for the State of Kerala (Tejas) | Correct, My Lord. |
| Second Judge (Deepesh) | The question is a narrow one. In 1951, Parliament extended the Indian Succession Act, 1925 to the former State of Travancore-Cochin. Did that extension displace the Travancore Act? And if it did not, is the Travancore Act's scheme for daughters consistent with Article 14? Counsel for the petitioner, you may begin. |

## Scene 2: Counsel for Mary Roy (1 minute 30 seconds)

*Slide 5. Sahil steps forward half a pace. Speak to the bench, not the audience. Count the points on your fingers.*

| | |
|---|---|
| Counsel for Mary Roy (Sahil) | May it please the court. This petition turns on a short point of statute. In 1951, Parliament passed the Part B States (Laws) Act, which extended the Indian Succession Act, 1925 to the Part B States, Travancore-Cochin among them. |
| Counsel for Mary Roy (Sahil) | That Act also dealt with the laws already in force in those States. Section 6 repealed the State laws that corresponded to the Parliamentary laws it extended. The Travancore Christian Succession Act deals with the same subject, intestate succession among Christians. It stood repealed from 1951. |
| Second Judge (Deepesh) | Counsel, if you are right, do we need to reach Article 14 at all? |
| Counsel for Mary Roy (Sahil) | No, My Lord. Article 14 is our alternative. If the Travancore Act is repealed, the Indian Succession Act governs, and a daughter shares equally with a son. |
| Counsel for Mary Roy (Sahil) | In the alternative, if the Travancore Act survives, giving a daughter a fourth of a son's share, capped at five thousand rupees, is discrimination that Article 14 does not allow. We ask the Court to declare that the Indian Succession Act governs the succession of Syrian Christians in the former Travancore area. |

## Scene 3: Counsel for the State of Kerala (1 minute 30 seconds)

*Slide 5. Tejas steps forward as Sahil steps back and stands at ease. Sahil does not react to Tejas's points.*

| | |
|---|---|
| Counsel for the State of Kerala (Tejas) | May it please the court. The Travancore Christian Succession Act is a special law, made for the Syrian Christians of Travancore, and it has governed them for decades. The State submits that the 1951 extension did not displace it. |
| Counsel for the State of Kerala (Tejas) | The Indian Succession Act is a general law. The Travancore Act was made for one community. A general law should not be read to wipe out a special one unless Parliament has said so in clear words. |
| Second Judge (Deepesh) | Counsel, does the 1951 Act not repeal the State laws that correspond to the laws it extends? |
| Counsel for the State of Kerala (Tejas) | It does, My Lord. The State's position is that the Travancore Act is a community law, and that was not the target of that provision. |
| Counsel for the State of Kerala (Tejas) | Finally, inheritance within a community is a delicate matter. Families have arranged their affairs around these shares for decades. Changing them is for the legislature, not for this Court. The State asks that the petition be dismissed. |

## Scene 4: Questions from the bench (1 minute)

*Slide 5, then Deepesh clicks to slide 6 on the last line. Judges lean forward. Questions are short and sharp. Counsel answer standing, without notes if possible.*

| | |
|---|---|
| Second Judge (Deepesh) to the State's counsel | The Travancore Act and the Indian Succession Act both govern intestate succession among Christians. In what way does the Travancore Act not correspond to the Indian Succession Act? |
| Counsel for the State of Kerala (Tejas) | My Lord, it is confined to one community in one region. The State submits that this makes it different in kind, not just in detail. |
| Presiding Judge (Trevor) to Mary Roy's counsel | The petitioner's father died in 1960. If we accept your argument, which law governed his estate? |
| Counsel for Mary Roy (Sahil) | The Indian Succession Act, My Lord. From 1951, the Travancore Act no longer operated. |
| Presiding Judge (Trevor) | Thank you, counsel. The court will confer. |

## Scene 5: The verdict (1 minute 30 seconds)

*Slide 6. The judges lean together and murmur silently for about five seconds. Then the presiding judge speaks. Counsel stand still.*

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| Presiding Judge (Trevor) | We have heard both sides. The question is whether the Travancore Christian Succession Act survived the extension of the Indian Succession Act in 1951. |
| Second Judge (Deepesh) | In 1951, Parliament, by the Part B States (Laws) Act, extended the Indian Succession Act, 1925 to the Part B States, including Travancore-Cochin. Section 6 of that Act repealed the State laws that corresponded to the laws it extended. |
| Presiding Judge (Trevor) | The Travancore Christian Succession Act dealt with the same subject: the succession of Christians. It corresponded to the Indian Succession Act. We hold that it stood repealed from 1951. |

| | |
|---|---|
| Second Judge (Deepesh) | Since the Travancore Act no longer operates, we do not need to decide whether its provisions on a daughter's share violate Article 14. We express no view on that question. |
| Presiding Judge (Trevor) | The Indian Succession Act therefore governs the succession of Syrian Christians in the former Travancore area, and a daughter shares equally with a son. We declare accordingly. |

*[The presiding judge taps the table. Everyone freezes for three seconds, then steps out of role. Sahil steps forward for the debrief (see slide 6).]*

*Accuracy note: the facts, issue and verdict follow the Supreme Court's ruling in Mary Roy v. State of Kerala ((1986) 2 SCC 209), as known from published summaries. The exact speeches, the State's arguments, the judges' short questions and the stage directions are scripted for performance and are not quotations from the record. Say "scripted for this enactment" if asked.*

# Part D. Closing slides (6 to 8)

## Slide 6. Mary Roy wins: the old Act was repealed (Scene 5 and debrief)

*Trevor, Deepesh, then Sahil · about 2:30 · Judges deliver the verdict (Scene 5). Then Sahil steps out of role for the debrief.*

Scene 5, the verdict: about 1 minute 30 seconds (Trevor and Deepesh), from the enactment script. Last line: "We declare accordingly." Trevor taps the table. Everyone freezes for three seconds, then steps out of role.

DEBRIEF (Sahil, about 45 seconds): "That is the judgment. Back to your votes: who said already gone? The Court never decided whether the old Act was unconstitutional. It found that the Travancore Act had been repealed in 1951, thirty-five years before the case was decided. For three decades, families had been living under a law that no longer existed. And notice how it started: Mary Roy's father left no will, so the default rules decided everything. Reportedly, even after the ruling she needed a further civil suit, and received her share only in 2006."

HANDOFF: "Tejas will turn the two cases into a checklist."

## Slide 7. A four-point estate planning checklist

*Tejas · about 1:30 · Walk down the table row by row.*

Let us put the two cases into a checklist.

Step one: decide to make a will. Without one, the Act's default rules decide, and in Mary Roy's case the old law gave a daughter a fraction of her brother's share.

Step two: confirm which succession law governs the family. Mary Roy again: the family had lived under a law that had been repealed in 1951.

Step three: keep one clear, current will, and name executors who can act. In the Birla–Lodha dispute, rival wills and a fight over who may oppose probate have run for twenty years.

Step four: explain any exclusion, and plan the probate route early. The Birla family's challenge started with a will that surprised the family. Telling the family why, and how the estate will be administered, narrows the room for a fight.

If you remember one line: no will, the law decides. A contested will, the courts decide, often for years. This is a class presentation and not legal advice. A real estate plan needs a lawyer who knows the family's circumstances. Thank you.

## Slide 8. Thank you, Questions?

*All four · about 1:00+ · Stand together. Answer from the Q&A prep sheet (Part E). The first speaker to catch the question answers; pass to the case owner if it is about their case.*

Thank you for listening. We are happy to take questions.

Case owners: the framework, Trevor. The Birla–Lodha will, Deepesh. The hearing for Mary Roy, Sahil. The hearing for the State and the checklist, Tejas.

If someone asks where to read more: Mary Roy v. State of Kerala ((1986) 2 SCC 209, decided 24 February 1986, WP (Civil) 8260 of 1983, bench of Chief Justice P. N. Bhagwati and Justice R. S. Pathak; summary at https://www.livelaw.in/amp/news-updates/mary-roy-petitioner-in-landmark-verdict-giving-equal-rights-for-daughters-in-christian-succession-passes-away-208078 and https://bnblegal.com/landmark/mary-roy-v-s-state-kerala/). Krishna Kumar Birla v. Rajendra Singh Lodha ((2008) 4 SCC 300, 31 March 2008;

https://indiankanoon.org/doc/240495/). The Section 33 summary is from the bare Act at https://www.advocatekhoj.com/library/bareacts/indiansuccession/6.php.

We worked from summaries of both judgments. Read the full text before you quote either.

# Part E. Q&A prep, time cuts and rehearsal

## Likely questions

**Why did you pick the Birla–Lodha case if you did not enact it?**

It is one of the best-known will disputes in India, and it shows how a will gets contested. It is not enactable because the question of the will's validity has not been decided after about twenty years, so there is no verdict to act out. Mary Roy has a clear ruling.

**Did the Supreme Court in Mary Roy strike down the Travancore Act?**

No. It held the Act had stood repealed since 1951, when the Indian Succession Act was extended to the former State. It did not decide whether the old Act was unconstitutional.

**Would a will have changed Mary Roy's position?**

Her father died without one, so the default rules applied. A will is how a person chooses the split. We would not go further than that: a lawyer would need to look at the facts.

**What did the Supreme Court decide in the Birla case in 2008?**

Say only what we know: it dealt with who has the right to oppose probate of the 1999 will. Summaries differ on how each Birla family member fared, so read the judgment before you say more.

**Is the Birla–Lodha dispute over?**

No. It has continued in the Calcutta High Court and the Supreme Court, and a court-appointed committee has administered the estate. Check the latest order before saying where it stands.

**What is probate, and why was the Birla will in the High Court?**

Probate is a court's grant that a will is genuine. Section 213 makes it a precondition for enforcing a will in certain cases. We have not checked in the full text why probate was needed here, so do not say more without checking.

**Is the hearing a real transcript?**

No. The facts, the issue and the verdict follow the Supreme Court's 1986 ruling, but the exact speeches, the State's arguments, the judges' short questions and the stage directions are scripted for this enactment.

**Does Section 33 apply to every Indian family?**

No. It is part of the Act's intestacy scheme. Parsis are excluded by Section 31, and other communities follow their own personal laws on intestacy. Confirm the position for a specific family before saying more.

**How did Mary Roy's story end?**

As reported, she needed a further civil suit after the ruling and received her share in 2006. Say "reportedly" and cite the source.

## If you are short of time

- Trim to about 13 minutes: drop the audience vote (about 45 seconds), cut Scene 4 to one question each (30 seconds), and shorten slide 2 to the with-a-will, without-a-will contrast (45 seconds).
- Trim to about 11 minutes: also drop the two bench interruptions in Scenes 2 and 3, and shorten the Birla slide to the will, the fight and the lesson (one minute).
- Never cut: the issue statement, the "repealed from 1951" holding in Scene 5, the debrief line on the vote, and step one of slide 7.

## Rehearsal checklist

- Read the Mary Roy judgment once (bnblegal.com has part of it and the Supreme Court record has the rest). Mark every line in Scenes 1 to 5 that you are unsure about.
- Run the enactment twice standing up, with a timer. Target about 6 minutes for Scenes 1 to 5. Cut the interruptions first if you are over.
- Assign the clicker. Sahil clicks 4 to 5. Deepesh clicks 5 to 6 on "The court will confer." Trevor clicks 6 to 7 after the debrief.
- Props: two chairs and a table for the bench, a gavel or a book to tap, a printed script for each speaker, a pen to count the vote.
- Marks: judges seated centre. Sahil standing left, Tejas standing right, both facing the bench at a slight angle toward the audience.
- Speak to the bench in the hearing, and to the audience in the slides. Slow down on the section numbers and the year 1951.
- Fix the [Date] placeholder on slide 1 before you present.
- If anyone asks: say "scripted for this enactment" and that the facts, issue and verdict follow the ruling.

## Check before presenting

- Slide 1 shows a [Date] placeholder. Fill it in.
- I could not open the judgments in this session, so everything below comes from summaries. Read the full Mary Roy judgment before presenting: confirm the Part B States (Laws) Act, 1951 and Section 6 reasoning, the exact share the Travancore Act gave a daughter, the counsel names, and whether the ruling applies only to estates opened after a certain date.
- Mary Roy: father P. V. Isaac died in 1960; the daughter's share (a fourth of a son's share or Rs 5,000, whichever is less); a lower-court loss and the 1983 petition; and "received her share in 2006" all come from news summaries. Confirm them.
- Birla–Lodha: sources disagree on the will's date (the court records say 18 April 1999), the date of the earlier joint will, the estate's value, and how each Birla family member fared in the 2008 Supreme Court ruling. The slides use only the points the sources agree on. Check the Supreme Court judgment (2008) 4 SCC 300 before saying more.
- The State of Kerala's arguments and every bench question are scripted for performance. They are plausible positions based on the issues in the headnote, not quotations from the record.
- Section 31 and Section 33 as summarised on slide 2 come from the bare Act. Section 33 is not a rule for every family. Hindus, Muslims and others follow their own personal laws on intestacy, so do not present it as a general rule.